

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Simon Wang	Team: Team # 5	CCRB Case #: 201311111	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 11/26/2013 7:00 AM	Location of Incident: § 87(2)(b)		18 Mo. SOL 5/26/2015		Precinct: 76
Date/Time CV Reported Tue, 11/26/2013 9:21 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/26/2013 9:21 AM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. CPT Maximo Tolentino	00000	891112	084 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A.CPT Maximo Tolentino	Abuse: Cpt. Maximo Tolentino entered and searched § 87(2)(b)				

Case Summary

On November 26, 2013, § 87(2)(b) filed the following complaint with the CCRB. On November 26, 2013, at approximately 7:00 a.m., § 87(2)(b) was inside her home at § 87(2)(b) in Brooklyn, when a group of officers executed a search warrant and entered her home. The following allegations resulted:

- **Allegation A – Abuse of Authority: Cpt. Maximo Tolentino entered and searched § 87(2)(b) in Brooklyn. § 87(2)(g)**

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-old Hispanic female. § 87(2)(b)'s employment status is unknown.

On November 26, 2013, § 87(2)(b) called the CCRB to file this complaint, and provided the following statement (encl. 3a-b). § 87(2)(b) was uncooperative in providing a sworn statement to the CCRB.

On November 26, 2013, at approximately 7:00 a.m., § 87(2)(b) was asleep inside her apartment at § 87(2)(b), in Brooklyn. Also present within the apartment were § 87(2)(b)'s mother, § 87(2)(b) and § 87(2)(b)'s three children who are ages § 87(2)(b). The apartment is under § 87(2)(b)'s name. A group of officers entered the apartment, and § 87(2)(b) was placed on the floor with a gun pointed to her while she was placed in handcuffs. Everyone in the apartment was relocated to the living room and the officers who had originally entered § 87(2)(b)'s apartment were replaced with four other uniformed officers.

One officer told § 87(2)(b) that they had reason to believe someone was selling drugs in the apartment. All of the officers asked where the drugs were and asked if there were guns in the house. One of the officers told § 87(2)(b) that her husband, § 87(2)(b), was selling drugs. § 87(2)(b)'s apartment was searched and while that was occurring, one officer told § 87(2)(b) that officers had purchased drugs from § 87(2)(b) on a day when she was in the house. § 87(2)(b) was not sure if the officers had a warrant, but she was shown a photograph of her husband, a picture of the building, and a picture of her door with her address written on it. Nothing was found in the search of § 87(2)(b)'s apartment and no summonses or arrests resulted.

Attempts to Contact Civilians

On December 3, 2013, the undersigned investigator called § 87(2)(b). Upon the undersigned's introduction, § 87(2)(b) immediately stated that she did not wish to speak to the CCRB without first consulting her attorney. The undersigned made four subsequent calls to § 87(2)(b) from December 6, to December 16, 2013, but § 87(2)(b) did not respond. Call request letters were sent to § 87(2)(b) on December 3, and December 11, 2013. Neither of the letters has been returned undelivered by the US Postal Service. On

December 16, 2013, a search of the Department of Corrections inmate-locator indicated that § 87(2)(b) was not incarcerated.

Officers Not Interviewed

§ 87(2)(g) no officers were interviewed for this investigation.

NYPD Documents

Search Warrant

On § 87(2)(b), Sgt. David Cheesewright of the intelligence division obtained a search warrant signed by Judge § 87(2)(b) in Kings County. The warrant was executed on November 26, 2013, supervised by Captain Maximo Tolentino of the 84th Precinct (encl. 8a).

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2a).

Subject Officer CCRB History

- Captain Tolentino has been a member of the service for 27 years and there are no substantiated CCRB allegations against him (encl. 1a).

Conclusion

Allegation not Pleaded

§ 87(2)(b) alleged that weapons were pointed at her when the officers entered her apartment. § 87(2)(g)

Identification of Subject Officer(s)

Because Captain Tolentino supervised the execution of the search warrant, the allegation has been pleaded against him.

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: Cpt. Maximo Tolentino entered and searched § 87(2)(b) in Brooklyn.

The investigation has determined that Captain Tolentino supervised the execution of a search warrant at § 87(2)(b)'s home at § 87(2)(b) in Brooklyn on November 26, 2013. Captain Tolentino and his team possessed a valid search warrant for this location. § 87(2)(g)

Team: 5

Investigator: _____ Simon Wang _____ 01/06/14
Signature Print Date

Supervisor: _____
 Title/Signature Print Date

Reviewer: _____
 Title/Signature Print Date

Reviewer: _____
 Title/Signature Print Date